

A.P. Un-aided Non-Minority Professional Institutions (Regulation of Admissions into Post Graduate Medical and Dental Professional Courses) Rules, 2017

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State of Andhra Pradesh - Act

A.P. Un-aided Non-Minority Professional Institutions (Regulation of Admissions into Post Graduate Medical and Dental Professional Courses) Rules, 2017

ANDHRA PRADESH

India

A.P. Un-aided Non-Minority Professional Institutions (Regulation of Admissions into Post Graduate Medical and Dental Professional Courses) Rules, 2017

Rule

A-P-UN-AIDED-NON-MINORITY-PROFESSIONAL-INSTITUTIONS-REGULATION-OF-ADMISSIONS-INTO-POST-GRADUATE-MEDICAL-AND-DENTAL-PROFESSIONAL-COURSES-RULES-2017 of 2017

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A.P. Un-aided Non-Minority Professional Institutions (Regulation of Admissions into Post Graduate Medical and Dental Professional Courses) Rules, 2017

Published vide Notification No. G.O. Ms. No.70, Health, Medical & Family Welfare (C1) Department, dated 3.5.2017 and

Published in the A.P. Gazette (Extraordinary, dated 8.5.2017

G.O. Ms. No.70, Health, Medical & Family Welfare (C1) Department, dated 3.5.2017 and Published in the A.P. Gazette (Extraordinary, dated 8.5.2017. - In exercise of the powers conferred by Sections 3 and 15 of the Andhra Pradesh Educational Institutions (Regulation of Admission and Prohibition of Capitation Fee) Act, 1983 (A.P. Act No. 5 of 1983), and in supersession of the orders issued in G.Os. 1 and 2 read above, the Governor of Andhra Pradesh hereby makes the following Rules for admission into the Post Graduate Professional Courses in Medical and Dental Courses in Unaided Non-Minority Professional Institutions in the State:

1.

Short title, applicability and commencement.

- (i) These Rules may be called the Andhra Pradesh Un-aided Non-Minority Professional Institutions (Regulation of Admissions into Post Graduate Medical and Dental Professional Courses) Rules, 2017

(ii)

They shall apply to all Un-aided Non-Minority Professional Institutions imparting Post Graduate Professional Education in Medical and Dental Courses for which admissions shall be made to the "Competent authority seats" and "Management seats" in such manner as prescribed herein.

(iii)

These Rules shall come into force from the academic year 2017-18.

2.

Definitions.

- 1. In these rules, unless the context otherwise requires;

(i)

"Act" means the Andhra Pradesh Educational Institutions (Regulation of Admission, and Prohibition of Capitation Fee) Act, 1983 (A.P. Act No.5 of 1983)

(ii)

"Competent Authority" means the Vice-Chancellor, Dr. NTR University of Health Sciences, Andhra Pradesh, Vijayawada.

(iii)

"Committee for Admissions" means the Committee nominated by the Competent Authority to select and make allotment of candidates to Competent Authority Seats in Professional Institutions offering P.G. Medical and Dental Courses in the State for Admissions in accordance with the rules laid down.

(iv)

"Common Entrance Test" means, National Eligibility-cum-Entrance Test (NEET-PG/NEET-MDS) which will be the basis for admission of the candidates into the Post Graduate Courses concerned in various Un-aided Non-Minority Professional Institutions in the State.

(v)

"Competent Authority Seats" means the seats earmarked from out of the sanctioned intake of seats in each course and in each college to be filled by the Committee for Admissions.

(vi)

"Management Seats" means the seats earmarked from out of the sanctioned intake of seats in each course to be filled in such manner as may be prescribed by the Government or by the Committee of Admissions constituted.

(vii)

"Inspecting Authority" means the Authority appointed by the Competent Authority for inspecting and scrutinizing the Admissions of the candidates made in the Unaided Non-Minority Professional Institutions.

(viii)

"Institutions" means, unless otherwise specifically mentioned, all the Unaided Non-Minority Professional Institutions imparting Professional Education in Medical and Dental courses.

(ix)

"Qualified Candidate" in respect of seats to be filled by the 'Competent Authority' means the candidate who has appeared for the NEET-PG/NEET-MDS for Post Graduate Course admission and has been assigned ranking in the Common Merit list.

(x)

"Qualifying Examination" means the examination of the minimum qualification prescribed which entitles one to seek admission into the relevant Professional Post Graduate Course.

Words and expressions used but not defined in these rules shall have the same meaning as assigned to them in the Andhra Pradesh Educational Institutions (Regulation of Admission and Prohibition of Capitation Fee) Act, 1983 (Act No.5 of 1983) unless otherwise defined by the Government in Health, Medical and Family Welfare Department or by the competent authority.

Seat Sharing and Admissions:-

(i)

The Association of Private Medical & Dental Colleges Management of A.P. members, imparting studies in Post Graduate education in Medical and Dental Sciences Courses in their respective Institutions, would make available 50% of intake of their seats course wise out of the total intake available, in each of their member -Medical and Dental Colleges, to the Government's PG Admission Cell for counselling and allocation of seats; based on merit; as per ranking to be determined/as signed by the competent authority based on National Eligibility-cum-Entrance Test (NEET-PG/NEET-MDS), as the case may be, and as per Rules framed for the purpose in accordance with the terms of this agreement.

(ii)

The seat matrix regarding the Convener and Management quota seats in each speciality in each Medical/Dental College shall be prepared by the University every year before counselling and any additional seats permitted by the MCI/ DCI and the University will be included in the counselling process.

(iii)

If there is only one seat available in the speciality, the seat will go to Management quota for the year 2017-18 and Convener quota in the year 2018-19. The allotment will be alternated in the subsequent years.

(iv)

Similarly, if there are 3 seats, one seat for Convener quota and one seat for Management quota will be allotted and the 3rd seat will go to Management quota in the year 2017-18 and Convener quota in the year 2018-19. The allotment of third seat will be alternated in the subsequent years.

(v)

If in a speciality one seat in degree and one seat in Diploma are available, the degree seat will be for Management and Diploma seat will be for Convener quota and it will be vice-versa in the next year between the Management and Convener quota following the this year's sequence.

(vi)

The unfilled seats after final phase of counselling for competent authority seats shall be surrendered to Management of respective colleges. If a candidate allotted a seat after final counselling of the Convener quota fails to join the course in a private college, that seat can be filled by the Management of respective institutions with eligible candidates.

(vii)

[The 50% of the sanctioned intake of the seats (Management quota) to member institutions of APMDCMA shall be filled by the "Committee for Admissions", with APMDCMA nominee as one of its member, under the categories listed hereunder with the eligible candidates on the basis of inter se merit among the applicants qualified in NEET-PG/NEET-MDS.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

(viii)

On non-availability of candidates in any of the categories in vii(a), (b) or (c), they can be filled from any other eligible candidates as prescribed by the Medical Council of India/Dental Council of India and the fee shall be on par with these category of students admitted under vii(c).

(ix)

In view of the making over of 50% of its total available seats in PG Courses, the Government of Andhra Pradesh, hereby exempts the members of the APMDCMA from the obligation, if any, of providing for reservations for either SCs, STs or other Backward Classes separately, since the Government of Andhra Pradesh itself is providing for requisite 'reservations' in seats now available to the Government out of aforesaid 50% of seats, in PG Courses in the institutions/Colleges of private Managements. The APMDCMA need not make separate reservation under 15(5) or Article 371 (J) of the Constitution of India.

Procedure for Grant of Admissions into PG [Medical, Dental] Courses under the Management Quota Seats:

1. [A.P. Private Medical & Dental Colleges Managements Association shall nominate one member representative to the "Committee for Admissions" constituted by the competent authority. The entire process shall be strictly in accordance with the procedure envisaged by Government of India vide Letter No.F.No.V.11011 /1 /2015MEP (Pt), dated 10.3.2011 & No.F.No. V. 11025/04/ 2016MEP, dated 6.4.2017.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

2. [The Committee for Admissions shall authorise one amongst them to issue notification in two National Newspapers, calling for application from NEET-PG/NEET-MDS qualified candidates for admission to Management quota (Sub-category 1) and Management quota (Sub-category 2 & 3) in PG Medical/Dental Courses separately. The admission process and number of seats under Management quota shall be displayed in the Association and Dr. NTR University of Health Sciences Websites.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

3.

He shall invite Online or Offline Applications in the form prescribed by it, from the NEET-PG or NEET-MDS eligible candidates for participating in Centralized Admission Process (CAP) for seeking admission to the Courses to Management quota (Sub-category 1) and (Sub-category 2 & 3) separately

4.

He shall prepare a merit list from the eligible candidates who have applied to the Management Quota seats, online or offline, in the prescribed form for admission to Post Graduate Medical Courses and Post Graduate Dental Courses on the basis of the marks at percentile in the NEET-PG examination or NEET-MDS examination.

5.

[The Committee for Admissions shall authorise one amongst them to notify the Venue, Date and Time of Counselling for each category of Management Quota Seats.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

6.

On the Day of Counselling the eligible candidates shall attend the Counselling in person with all the Original Certificates and the fee prescribed. The candidates will be called in the order of Merit for Counselling to Opt the Subject and College of his/her choice.

7.

Counselling will be held separately for Management Quota - Subcategory 1 and Management Quota - Sub-category 2 &

3.

8.

The selected candidate will be issued Provisional Selection Intimation with a direction to report to the concerned Principal within the date specified.

9.

If a candidate opts a seat and fails to pay the fee at respective institution, the seat will be treated as vacant and will be filled in the 2nd Counselling.

10.

If a selected candidate fails to report to the Principal within the stipulated time, the Selection and Admission of the candidate will be cancelled automatically and the seat will be filled in the 2nd Counselling.

11.

The Certificates of the Candidates will be sent to the respective colleges after closure of admissions to Management Quota seats.

12.

[The Committee for Admissions shall authorise one amongst them to notify the Venue, Date and Time of 2nd Counselling to fill-up the vacant seats if any, after 1st Counselling for Management Quota Seats.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

13.

[The Admissions through Counselling into Management Quota Seats will be closed at the end of 2nd Counselling and the candidates who were admitted will be considered as the bona fide candidates of the respective colleges. The Fee paid by the candidates and the Original Certificates will be sent to the respective colleges.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

14.

The College Fee shall be paid in the form of crossed demand draft in favour of "Secretary, APMDCMA" payable at Vijayawada/Rajahmundry.

15.

The Candidates shall pay prescribed Non-Refundable Application Fee, Counselling Fee and University Fee.

16.

The Candidates are bound by the Regulations to be made by the Association with regard to Admission, Cancellation and Withdrawal from the Course.

17.

The APMDCMA shall constitute a Grievance Redressal Committee composed of a Dean/Principal of a Medical/Dental College, one eminent person in public service and one member nominated by the University. Any grievance as to the determination of their merit and entitlement for admissions, cancellation of seats, refund of fees, return of documents, etc., the students or the colleges concerned must approach the Grievance Redressal Committee headed by a Principal/Dean/Director of a Medical/Dental College and the decision of Grievance Redressal Committee shall be binding on both Parties.

18.

All institutions shall display their fee structure in the college notice board and College Website.

19.

The college shall pay stipend to the PG students as per the MCI/DCI/A.P. State Regulations.

20.

[All the candidates admitted into Management Quota Seats in unaided private medical college, on completion of their postgraduate course shall work for one year as 'Senior Resident' in the institution where they pursued postgraduate course.]

[Substituted by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

[The Management shall pay a stipend of Rs. 30,000/- per student per month for Medical students and Rs. 25,000/- per student per month for Dental students.]

[Added by Notification No. G.O.Ms. 75, dated 10.5.2017 (w.e.f. 8.5.2017).]

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